

**IN THE CIRCUIT COURT OF THE THIRTEENTH
JUDICIAL CIRCUIT IN AND FOR
HILLSBOROUGH COUNTY, FLORIDA**

CHRISTOPHER HANSON,

Plaintiff.

v.

CASE NO.: 25-CA-10255

THIRTEEN JUDICIAL CIRCUIT COURT,
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS, JUDGE MATTHEW
FELIX, COURT ADMINISTRATOR GINA
JUSTICE, MIKE MOORE, and CLERK OF
COURT VICTOR CRIST,

Defendants.

**CLERK'S RESPONSE TO ALTERNATIVE WRIT
AND AMENDED PETITION FOR WRIT OF MANDAMUS**

Respondent, Victor D. Crist, in his official capacity as Clerk of the Circuit Court for Hillsborough County (the "Clerk"), through undersigned counsel, responds to the Court's Alternative Writ directing the Clerk to show cause why a peremptory writ should not issue compelling production of records identified in Part A of the Prayer for Relief in Plaintiff's Amended Petition, and why the Court should not grant the additional relief requested therein, and states as follows:

PRELIMINARY STATEMENT

Mandamus is only proper to compel the performance of a clear, ministerial duty, but the Amended Petition does not come close to meeting this standard as to the Clerk. Instead, it seeks to compel production of Thirteenth Judicial Circuit administrative records and to obtain declarations and explanations regarding matters involving judges, judicial assistants, court administration,

hearing recordings, and internal communications among Thirteenth Judicial Circuit officers and staff—all of which are materials outside of the Clerk’s purview. The Clerk is not and has never been the custodian of the materials identified in the Amended Petition. If the materials exist, the Clerk lacks possession, custody, and control over those records, and has no access to or authority over decisions relating to them. Simply put, this dispute does not involve the Clerk. Accordingly, mandamus cannot lie against the Clerk as a matter of law because the Amended Petition identifies no clear, ministerial duty owed by the Clerk regarding records outside of its custody, and the related requests for declaratory relief, explanations of judicial actions, and attorneys’ fees and costs necessarily fail.

BACKGROUND

Plaintiff initiated this action seeking access to records he contends relate to alleged judicial misconduct and irregularities in a family law matter, as well as related relief based on the purported failure to produce those records. According to the Amended Petition and its referenced attachments (D.I. 6), Plaintiff submitted multiple public records requests between July and October 2025 directed primarily to the Thirteenth Judicial Circuit. His requests sought emails and text messages of judges and judicial assistants, communications and records concerning judicial conduct, recusal, and the scheduling and conduct of specific hearings, and audio or video recordings of family law court proceedings. Plaintiff addressed the requests to various judicial branch officials and personnel, including Court Administrator Gina Justice and the Thirteenth Judicial Circuit’s Public Information Officer Mike Moore. Plaintiff’s letters, dated July 24, 2025, July 25, 2025, August 14, 2025, and September 4, 2025 requesting these administrative records, are all addressed to “13th Judicial Circuit, Legal Department – Public Records, 800 E. Twiggs Street, Room 600, Tampa,

FL 33602,” which is the Administrative Office of the Thirteenth Judicial Circuit, not the Clerk. (D.I. 6 at 3–12, 42–43).

The responses Plaintiff received came from officials and staff of the Thirteenth Judicial Circuit—not the Clerk—most notably Court Administrator Gina Justice and Public Information Officer Mike Moore. (*E.g.*, D.I. 6 at 13–17, 20–24, 44, 47–51, 56, 63–64.) Those responses acknowledged the requests, produced certain records, asserted objections or exemptions, or advised that certain materials, such as video recordings, were not available for public inspection. (*Id.*) The Clerk, through undersigned counsel, responded to Mr. Hanson by letter dated October 14, 2025, as a courtesy to Mr. Hanson explaining: “All of the documents you seek – if they exist – are not records of the Clerk.” See **Exhibit 1**, October 14, 2026 Letter. Despite this courtesy and clarification, Plaintiff nevertheless initiated this action.

Plaintiff’s claims, as reflected in the Amended Petition, are directed at the responses and conduct of judicial branch officials in handling the requests. Plaintiff did not serve the Clerk with the Amended Petition, and the Amended Petition and its attachments reflect that all substantive responses to Plaintiff’s requests came from judicial branch officials, not the Clerk. The Clerk appears in this action solely because it was named as a respondent in Plaintiff’s mandamus petition and to clarify, once again, that it does not possess, control, or have custodial responsibility for the judicial administrative records and communications at issue.

As explained below, the Clerk has no custodial responsibility for the records at issue and therefore owes no ministerial duty that could support mandamus or related relief.

RESPONSE TO SHOW CAUSE

“A party petitioning for a writ of mandamus must establish a clear legal right to performance of the act requested, an indisputable legal duty, and no adequate remedy at law.”

Smith v. State, 696 So. 2d 814, 815 (Fla. 2d DCA 1997); *Radford v. Brock*, 914 So. 2d 1066, 1067 (Fla. 2d DCA 2005). Once an alternative writ has issued, the burden shifts to the respondent to come forward with facts explaining its refusal to perform the alleged legal duty. *Smith*, 696 So. 2d at 816. The Clerk owes no ministerial duty to produce the judicial records and communications Plaintiff seeks because the Clerk does not possess, control, or have custodial responsibility for those materials, and mandamus and related relief therefore cannot lie against the Clerk as a matter of law.

A. The Clerk Has No Ministerial Duty to Produce Records Outside of Its Custody and Control.

When a public records request is made, Florida law directs that the custodian of those records must produce them for inspection and copying. *See* § 119.07(1), Fla. Stat. But when the Clerk is acting in its capacity as clerk of court in connection with judicial records, the governing authority is not the general public records statute, but the Florida Rules of General Practice and Judicial Administration, specifically Rule 2.420. *Times Pub. Co. v. Ake*, 645 So. 2d 1003, 1005 (Fla. 2d DCA 1994), *approved*, 660 So. 2d 255 (Fla. 1995) (“The clerk, when acting in the exercise of his duties derived from article V is acting as an arm of the court and, as such, is immune from the supervisory authority of the legislature. Thus, chapter 119 does not apply to the clerk in such capacity and the access to judicial records under his control is governed exclusively by rule 2.051.”) (rule later renumbered as Rule 2.420).

An entity is a “custodian” of a record only if it has supervision and control over the document or have legal responsibility for its care, keeping, or guardianship. *See Mintus v. City of W. Palm Beach*, 711 So. 2d 1359, 1361 (Fla. 4th DCA 1998). Rule 2.420 expressly designates the chief justice or chief judge as the custodian of a court’s administrative records, while each individual judge is the custodian of records solely within that judge’s possession. Fla. R. Gen.

Prac. & Jud. Admin. 2.420(b)(3). All other references to a “custodian” mean the official charged with the care, safekeeping, and supervision of the records, including any designee *Id.*

While the Clerk maintains court filings, dockets, and case files and is the custodian of those court records as defined in Florida Rule of General Practice and Judicial Administration 2.420(b)(1)(A), materials that pertain to judges and their staff, including internal communications, emails, and documents maintained by judges or judicial assistants, are not within the Clerk’s custody. *See Woodard v. State*, 885 So. 2d 444, 445–46 (Fla. 4th DCA 2004); *Hogan v. State*, 983 So. 2d 656, 657 (Fla. 2d DCA 2008); Fla. R. Gen. Prac. & Jud. Admin. 2.420(b)(3). Although the Clerk is responsible for certain judicial administrative records, such as jury and grand jury items, the items sought here fall outside the categories for which Rule 2.420 assigns custodial responsibility to the Clerk. The records Plaintiff seeks here—namely communications between Thirteenth Judicial Circuit members involving judges and judicial assistants, including Judges Kelly Ayers, Wendy DePaul, and Matthew Felix, regarding hearings, recusal, and judicial conduct, as well as audio or video recordings of certain proceedings—are not records that the Clerk maintains, possesses, or controls, and the Clerk lacks authority to demand, obtain, or disclose them.

Consistent with this allocation of custodial responsibility, Plaintiff was expressly informed by letter dated October 14, 2025 that the Clerk was not in possession of the requested Thirteenth Judicial administrative records, and the Clerk has consistently maintained that it does not possess, control, or have custodial responsibility for the records Plaintiff seeks. *See Exhibit 1*. The attachment referenced in the Amended Petition further reflects and reinforces this position: Plaintiff’s own documentation shows that the Thirteenth Judicial Circuit, through its Legal Department, Public Records Division, and designated personnel, including Court Administrator Gina Justice and Public Information Officer Mike Moore, received, reviewed, and substantively

responded to Plaintiff's requests by acknowledging receipt, producing records where appropriate, asserting objections or exemptions, and advising when materials were unavailable for public inspection (D.I. 6). Plaintiff's July 24, 2025, July 25, 2025, August 14, 2025, and September 4, 2025 correspondence—which are each addressed to “13th Judicial Circuit, Legal Department – Public Records, 800 E. Twiggs Street, Room 600, Tampa, FL 33602” —confirms that Plaintiff sought judicial administrative records over which the Clerk has no custodial responsibility. (D.I. 6.) Moreover, Plaintiff continued to direct his follow-up inquiries and objections to judicial branch officials, not the Clerk. Plaintiff's own attachments therefore demonstrate that the records at issue are within the custody and control of the Thirteenth Judicial Circuit and its officials, not the Clerk.

Accordingly, because the Clerk has no ministerial duty to produce records outside its custody or control, any request for an order compelling the Clerk to produce the identified materials should be denied.

B. Declaratory Relief as to the Clerk Is Improper Because the Clerk Does Not Have Custody or Control Over the Records Sought.

Plaintiff seeks a declaration that the Clerk denied access to requested public records and violated the Florida Constitution. Declaratory relief is improper, however, because the Clerk made no access determination regarding the records described in the Amended Petition and did not deny Plaintiff access to any records. To obtain declaratory relief, a plaintiff must establish a causal connection between the alleged injury and the conduct complained of, as well as a substantial likelihood that the requested relief will remedy the alleged injury. *State v. J.P.*, 907 So. 2d 1101, 1113 n.4 (Fla. 2004) (citing *Lujan v. Def. of Wildlife*, 504 U.S. 555, 560 (1992); *Vt. Agency of Natural Res. v. Stevens*, 529 U.S. 765, 771 (2000)).

Plaintiff cannot satisfy either requirement as to the Clerk because the Clerk is not the custodian of the records Plaintiff seeks and exercised no control over their production. As a result,

there is no causal connection between Plaintiff's alleged injury and any action by the Clerk, and no declaration against the Clerk would remedy Plaintiff's claimed denial of access to those records. The attachments to the Amended Petition confirm this point, as they reflect that the Clerk neither responded to Plaintiff's requests nor made any access determinations, and instead show that all responses, productions, and objections were issued by judicial branch officials (D.I. 6). The Clerk therefore is an improper party to the requested declaratory relief and declaratory relief should accordingly be denied as to the Clerk.

C. The Clerk Is Not a Proper Party to Provide Explanations for Judicial Decisions and Related Conduct.

The Clerk is also an improper party from whom to seek explanations regarding decisions made by the Thirteenth Judicial Circuit, judges, judicial assistants, or the Court Administrator. For the same reasons set forth above, the Clerk lacks custody, authority, and control over the matters Plaintiff challenges and therefore has no ability or obligation to provide explanations concerning judicial actions, including matters relating to judicial conduct, recusal, or communications by or among judges, judicial assistants, or other judicial branch personnel directed to each other regarding these and the scheduling or conduct of hearings. The Clerk likewise lacks knowledge of those matters, which fall entirely within the purview of the relevant court officials and staff. Any request seeking to compel the Clerk to provide explanations or responses on those topics is therefore inapplicable to the Clerk and should be denied.

D. Rule 2.420 Does Not Authorize Attorneys' Fees Against the Clerk.

Because the Clerk's duties with respect to judicial records are governed by Rule 2.420 rather than chapter 119, there is no basis for an award of attorneys' fees against the Clerk. *Times Pub. Co.*, 645 So. 2d at 1005 (Fla. 2d DCA 1994) ("Thus, chapter 119 does not apply to the clerk in such capacity and the access to judicial records under his control is governed exclusively by

rule 2.051. Since the Clerk is not subject to chapter 119 with regard to judicial records, the trial court did not err in denying the Times' request for attorney's fees under the Act.”) (rule later renumbered as Rule 2.420); *see* Fla. R. Gen. Prac. & Jud. Admin. 2.420(m) (providing fees for copies of judicial administrative records, not court records, are governed by section 119.07, while omitting any reference to attorneys’ fees under section 119.12). Had the Florida Supreme Court intended to incorporate section 119.12, Florida Statutes into Rule 2.420, it would have done so expressly, as it has done with other provisions of chapter 119. *See* Fla. R. Gen. Prac. & Jud. Admin. 2.420(d)(1)(B)(iii), (xiii), and (xxiii).

CONCLUSION

Because the Clerk does not possess, control, or have custodial responsibility for the Thirteenth Judicial Circuit administrative records Plaintiff seeks, the Clerk owes no duty that could support the relief requested. The Clerk therefore respectfully requests the Court deny and dissolve the Alternative Writ, deny the Amended Petition as to the Clerk, dismiss the Clerk from this action with prejudice, and grant such other and further relief as the Court deems just and proper.

DATED: February 23, 2026.

Respectfully submitted,

/s/ Keiana R. Wilkerson

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Counsel for the Clerk

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been served on February 23, 2026, via the Florida Courts E-Filing Portal and electronic mail upon all parties and counsel of record.

/s/ Keiana R. Wilkerson

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October 14, 2025

VIA EMAIL (cahanson77@yahoo.com)

Christopher Hanson

**RE: Your Final Notice Regarding Outstanding Public Records Requests –
September 9 & 12, 2025**

Dear Mr. Hanson:

This firm represents Victor D. Crist, the Clerk of Circuit Court & Comptroller, Hillsborough County, Florida (“Clerk Crist”) in his official capacity as Clerk of Circuit Court & Comptroller, Hillsborough County, Florida (the “Clerk’s Office”) (jointly, the “Clerk”), including with respect to your public records requests and your correspondence, including, but not limited to, the “*Final Notice Regarding Outstanding Public Records Requests – September 9 & 12, 2025*” email you sent on October 9, 2025. If you have counsel, please have them contact me at their earliest convenience.

The Clerk received your request because you used a Clerk “Recording” email address. We have reviewed your correspondence and the *Motion to Supplement the Record with Video of 4/4/25 Hearing and Recusal Documents*, which you provided. From these documents, the Clerk understands you are seeking primarily a “video recording of the 4/4/25 hearing” that took place at the “Thirteenth Judicial Circuit,” and related emails, text messages, and communications. All of the documents you seek – if they exist – are not records of the Clerk. We believe your intent was to address your request to the 13th Judicial Circuit which included a recording of the hearing mentioned above, and not intended for Clerk Recording which is specific solely to the Official Records of Hillsborough County, and not the Courts. From what you have provided, we understand that you and the 13th Judicial Circuit are in contact with regard to your requests.

Please let this correspondence serve as confirmation the Clerk does not believe it has any records responsive to your requests. If any of the foregoing is incorrect please let me know. Otherwise, we consider this matter closed.

Sincerely,

/s/ Jason L. Margolin

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EXHIBIT 1